

General Terms and Conditions of Payment

11. Place of performance and jurisdiction, miscellaneous

- 11.1 For all claims resulting from our business relationship with the customer, in particular regarding our deliveries, the site from which the delivery originates shall be deemed the place of performance.
- 11.2 The customer may assign its claims arising from the contractual relationship only with our prior written approval.
- 11.3 For all claims resulting from our business relationship with the customer, in particular regarding our deliveries, the exclusive place of jurisdiction shall be Weinheim/Bergstraße, Germany. This shall also apply to disputes concerning the formation and validity of a contractual relationship. We shall, however, also have the option to sue the customer in the courts competent for the customer's place of business.
- 11.4 If a customer's place of business is located outside of Germany, we shall be entitled to have all disputes arising out of or in connection with our business relationship with the customer, including disputes about the validity of contracts, finally settled in accordance with the Arbitration Rules of the German Institution of Arbitration (DIS) without recourse to the ordinary courts of law. The place of arbitration shall be Frankfurt a. M., Germany. Upon request, we shall exercise our right to choose arbitration before proceedings are initiated. The arbitration proceedings shall be conducted in German, unless the customer requests them to be held in English.
- 11.5 The business relationship with the customer shall be exclusively governed by the laws of Germany, excluding its rules of private international law, the UN Convention on the International Sale of Goods (C.I.S.G.) and other bilateral or multilateral conventions on the harmonisation of law regarding the international sale of goods.

12. Remark

In order to achieve optimal product function and high duration of life it is recommended to pay attention to our catalogues including assembly directions as well as our guidance for storing parts, maintenance and cleaning of rubber parts (according to DIN 7716).

This is a convenience translation of our German Conditions of Delivery and Payment (*Allgemeine Liefer- und Zahlungsbedingungen*). In case of discrepancies between the German and the English version, the German version shall prevail.

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